25SMCV06075 25SMCV06075

County: los-angeles

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Department: 205

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Case Number: 25SMCV06075 Hearing Date: August 4, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

NEW LION ENTERPRISES, LLC,

Plaintiff,

v.

REVIVE WELLNESS COUNSELING CENTER, et al.,

Defendant.

Case No.: 25SMCV06075

Hearing Date: August 4, 2026

[TENTATIVE] order RE:

DEFENDANT’S MOTION TO DEEM

REQUESTS FOR ADMISSIONs

ADMITTED and for monetary

sanctions in the amount of $2,160

BACKGROUND

This is a breach of contract case. Plaintiff New Lion Enterprises LLC is the owner of the real property located at 9150 Wilshire Boulevard, Suite 247, Beverly Hills, California ("Property"). Defendants Revive Wellness Counseling Center, Rodney Rabbani, Nova Ghanouni, and Joanna Zioni entered a lease agreement with Plaintiff on January 31, 2024, with an ending date of February 28, 2027. Plaintiff alleges Defendants breached the lease agreement by ceasing rent payment and abandoning the premises beginning October 1, 2025. Plaintiff alleges Defendants are liable for unpaid rent and related charges. The operative complaint alleges claims for (1) breach of contract and (2) common counts.

This hearing is on Plaintiff's four motions to deem admitted requests for admissions ("RFAs") and for sanctions in the amount of $14,115. The requests for admissions were served by e-mail on May 26, 2026, and responses were due by June 29, 2026. Plaintiff argues that no responses were served by that date, and that Defendants' proof of service was fabricated. In any case, according to Plaintiff, the responses were not verified and therefore constituted no responses at all. There was no opposition filed as of the posting of this tentative ruling.

LEGAL STANDARD

Where a party fails to timely respond to a request for admission, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) The party who failed to respond waives any objections to the demand, unless the court grants them relief from the waiver, upon a showing that the party (1) has subsequently served a substantially compliant response, and (2) that the party's failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2033.280, subds. (a)(1)-(2).)

The court shall grant a motion to deem admitted requests for admissions, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc., § 2033.280, subd. (c).)

Where a party fails to provide a timely response to requests for admission, "[i]t is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280, subd. (c).) While delayed responses may avoid a motion to deem admitted, they will not avoid monetary sanctions. (Code Civ. Proc. § 2033.280 subd. (c); Gonzales v. Harris, 2021 Cal. Super. LEXIS 29267 at *6 (even if delayed responses are served, sanctions are mandatory because the motion had to be brought, regardless of whether it is ultimately denied because responses are served before the hearing).)

ANALYSIS

Plaintiff served four sets of RFAs, one on each Defendant on May 26, 2026. The RFAs were served by e-mail, which means the responses were due within 30 days plus two court days for service by e-mail, or by June 29, 2026. Defendants claim that the responses were served by mail on June 29, 2026, but Plaintiff argues that the proof of service was false.

According to Plaintiff, the tracking number for the USPS package showed that the shipping label was not created until June 30, 2026 (meaning it could not have been sent on June 29, 2026). Moreover, the package was shipped to an address that does not belong to Plaintiff's counsel.

Plaintiff also points out that every other document served in the case was by e-mail, and therefore, the service of the responses by mail is suspicious, particularly since the responses were over 360 pages and it would have been more economical to serve them by e-mail. Plaintiff posits that Defendants did not serve by email because it would have given the lie to their claim of a June 29 “service.”

Plaintiff has made compelling arguments that the proof of service in this case was false. Tellingly, Defendants have not filed an opposition to challenge Plaintiff’s assertions of perjury. Notwithstanding, the Court need not decide whether Defendants’ counsel perjured themselves because Defendants’ responses were unverified. Responses to RFAs must be verified; and¿unverified responses¿are the equivalent of no response and subject to a motion to¿deem admitted.¿(Allen-Pacific Ltd. v. Superior Court¿(1997) 57 Cal. App. 4th 1546, 1551¿(disapproved on other grounds in¿Wilcox v.¿Birtwhistle¿(1999) 21 Cal. 4th 973, 983 n. 12).) An¿unverified response¿is not “substantial compliance” and thus does not avoid the requirement that, upon motion, the court¿must deem admitted¿RFAs to which no response has been served.¿ (Id.; see also¿St. Mary v. Superior Court, 223 Cal. App. 4th at 779-780.)

Plaintiff seeks monetary sanctions in the amount of $14,115. Plaintiff requests the fees of two attorneys, one at an hourly rate of $600 (Aaron Newman), and the other at an hourly rate of $750 (James Goldman, which was discounted from a usual hourly rate of $1,500). These motions did not require the work of two separate attorneys, particularly one who usually charges at the rate of $1,500. The Court declines to award all fees requested for Mr. Goldman’s work.

As to Mr. Newman, his declaration does not provide any details about his background nor does he provide support that a reasonable hourly rate for an attorney of his experience is $600. Mr. Newman was admitted to the bar in 2023, and a third year lawyer at a personal injury/lemon law firm does not normally command a rate of $600. Accordingly, the Court discounts his rate to $450.

As to hours worked, Mr. Newman attests he spent 9.75 hours preparing the four motions, anticipates spending an additional 4.5 hours reviewing the oppositions and preparing replies for all four motions, and 2 hours attending the hearing. There was no opposition to the motions and therefore, the Court reduces the hours billed by 4.5 hours. Also, for this type of motion, the Court concludes that the hours billed for the hearing should be no more than one hour.

Accordingly, the Court will award monetary sanctions in the amount of $4,837.50.

CONCLUSION

Based on the foregoing, the Court grants Plaintiff’s motions to deem admitted requests for admissions, and grants monetary sanctions in the amount of $4,837.50 to be paid jointly and severally by Defendants and their counsel within 30 days.

DATED: August 4, 2026 ____________________________

Edward B. Moreton, Jr.

Judge of the Superior Court